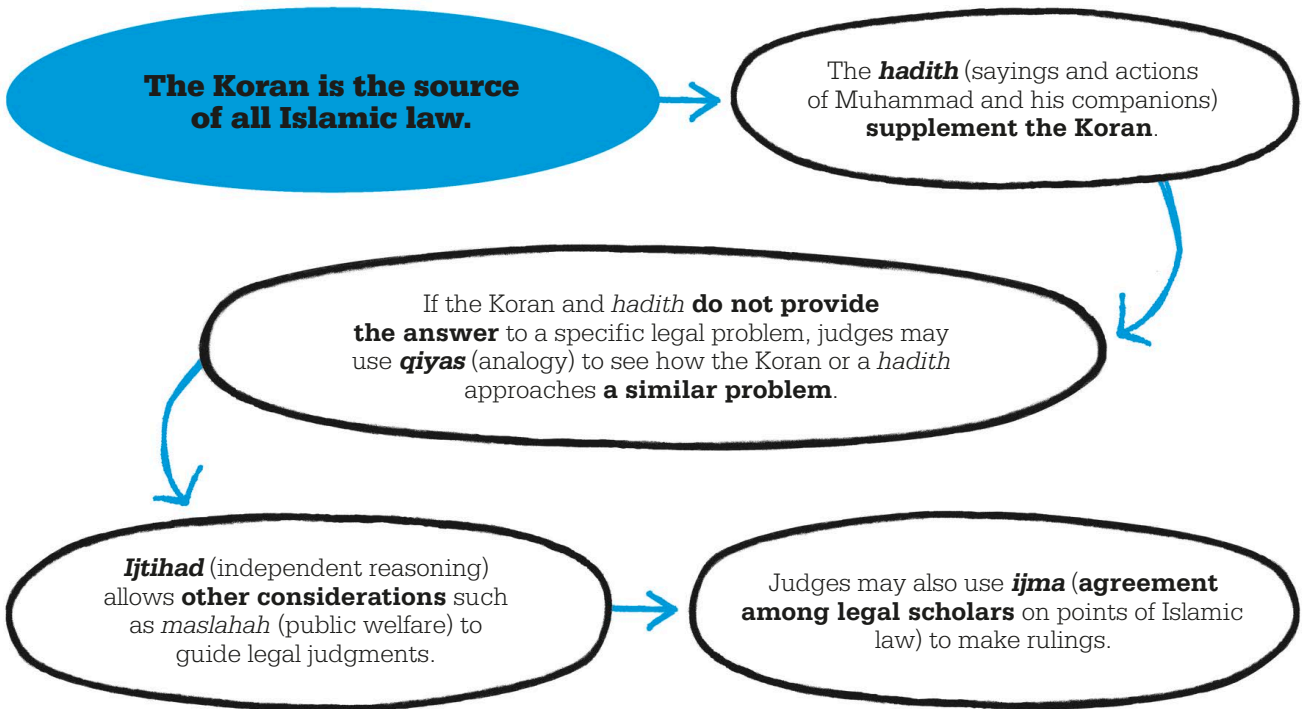


See also: The Ten Commandments and Mosaic law 20–23 ■ The *Arthashastra* and the *Manusmriti* 35 ■ The Mishnah and the Talmud 38–41 ■ The origins of canon law 42–47 ■ Gratian's *Decretum* 60–63 ■ Thomas Aquinas 72–73



In the desert interior, blood feuds were moderated by negotiations for compensation between the offended parties.

Once the followers of Islam, the new religion Muhammad preached, fled persecution in Mecca and found refuge in Yathrib (now Medina) in 622 CE, they rapidly grew from a small group of companions into a community (*umma*) of several thousand and needed a law to govern them. This was contained in the Koran (or Qur'an), the sacred book of Muhammad's revelations, which was first compiled in 632 CE. Held to be the literal word of God, it was both unchangeable and sacred, and the guidance and commandments it contained—such as the obligation to pray five times a day and to be charitable

to the poor—form the Sharia (or “right path”), which is the bedrock of the principles of Islamic law.

Sources of Islamic law

The Koran is not a formal legal document. Although there are principles within the Koran that can be applied to situations not directly mentioned in its text, it lacks a means to interpret it. Within a century of Muhammad's death in 632 CE, Islam had spread from the Arabian Peninsula across large parts of the world, including South and Central Asia, North Africa, and Spain. The huge increase in the

Imam al-Bukhari (see p.56), who compiled one of the most authoritative collections of *hadith*, is buried at this mausoleum in Uzbekistan. It is an important pilgrimage site in Islam.

number of followers made it even more important that a consistent Islamic legal framework was developed. Consequently, a system of Islamic jurisprudence, or *fiqh*, grew up, accelerated by the appointment of *qadis* or Islamic »

